

Tony Evers  
Governor



**DIVISION OF QUALITY ASSURANCE**  
NORTHEASTERN REGIONAL OFFICE  
200 NORTH JEFFERSON STREET SUITE 501  
GREEN BAY WI 54301

Kirsten L. Johnson  
Secretary

**State of Wisconsin**  
**Department of Health Services**

Telephone: 920-448-5252  
Fax: 608-224-5704  
TTY: 711 or 800-947-3529

June 7, 2024

**ELECTRONIC MAIL**  
SOD #5MV216

**NOTICE and ORDER**  
**NOTICE OF VIOLATION**  
**ORDER NOT TO ADMIT NEW OR ADDITIONAL RESIDENTS**  
**NOTICE OF IMPOSED FORFEITURE**

Jason Lindemann  
PO Box 3006  
Oshkosh, WI 54903

C/O Licensee: Care Partners Assisted Living LLC

**Re:** Care Partners Stevens Point 1 (0011953)  
3349 Bldg. A Whiting Avenue  
Stevens Point, WI 54481

Dear Mr. Lindemann:

This letter is a statutory NOTICE of VIOLATION and imposed ORDER on the licensee of Care Partners Stevens Point 1, located at 3349 Bldg. A Whiting Avenue, Stevens Point, WI 54481, and sets forth appeal rights, if any. This regulatory action is taken by the Department of Health Services (Department) pursuant to Wis. Stat. § 50.03(5g), and Wis. Admin. Code ch. DHS 83.

**NOTICE OF VIOLATION**

On March 14, 2024, a complaint investigation, verification visit and self-report review were concluded for Care Partners Stevens Point 1 by the Division of Quality Assurance, Bureau of Assisted Living, to determine if the above-referenced facility was in substantial compliance with Wis. Stat. ch. 50 or Wis. Admin. Code ch. DHS 83, or both, which set forth requirements for the administration and operation of a community-based residential facility (CBRF). The Department is issuing Statement of Deficiency (SOD) #5MV216 for violations of Wis. Stat. ch. 50 or Wis. Admin. Code ch. DHS 83, which establish the grounds for this action. SOD #5MV216 is enclosed.

**ORDER NOT TO ADMIT NEW OR ADDITIONAL RESIDENTS**

Based on the results of the Department's investigation, and pursuant to Wis. Stat. § 50.03(5g)(b)7., **EFFECTIVE UPON RECEIPT OF THIS NOTICE and ORDER**, the Department of Health Services **HEREBY ORDERS** that **Care Partners Stevens Point 1 NOT ADMIT ANY NEW OR ADDITIONAL RESIDENTS.**

**NOTICE OF FORFEITURE\***

In addition to other sanctions enumerated in Wis. Stat. § 50.03(5g)(b)1. to 8., according Stat. § 50.03(5g)(c)1.b., the Department of Health Services may impose a forfeiture on a licensee or any other person who violates the applicable statutory provisions or administrative rules governing CBRFs. If imposed, the forfeiture amount may not be less than \$10 or more than \$1,000 per day for each violation.

The Department has determined that you violated state statutes or administrative code provisions, or both, as identified in the enclosed SOD #5MV216. Therefore, pursuant to Wis. Stat. § 50.03(5g)(c), **IT IS HEREBY ORDERED** that a total **FORFEITURE OF \$9,100.00 IS IMPOSED** for the following violations described in SOD #5MV216.

| <b><u>TAG</u></b> | <b><u>DHS Code</u></b> | <b><u>Forfeiture Amount</u></b> |
|-------------------|------------------------|---------------------------------|
| <b>N158</b>       | <b>83.12(2)(a)</b>     | <b>\$1,000.00</b>               |
| <b>N161</b>       | <b>83.12(3)(a)</b>     | <b>\$1,400.00</b>               |
| <b>N214</b>       | <b>83.15(3)(a)</b>     | <b>\$500.00</b>                 |
| <b>N277</b>       | <b>83.25</b>           | <b>\$800.00</b>                 |
| <b>N348</b>       | <b>83.32(3)(d)</b>     | <b>\$1,600.00</b>               |
| <b>N389</b>       | <b>83.35(3)(d)</b>     | <b>\$1,100.00</b>               |
| <b>N427</b>       | <b>83.38(1)(c)</b>     | <b>\$500.00</b>                 |
| <b>N432</b>       | <b>83.38(1)(h)</b>     | <b>\$500.00</b>                 |
| <b>N489</b>       | <b>83.44(2)(a)</b>     | <b>\$600.00</b>                 |
| <b>N491</b>       | <b>83.44(2)(c)</b>     | <b>\$300.00</b>                 |
| <b>Y3244</b>      | <b>50.09(1)(L)</b>     | <b>\$800.00</b>                 |

**Total Forfeiture Due: \$9,100.00**

You must pay the Total Forfeiture amount within ten (10) days of receipt of this NOTICE and ORDER.

Please make the forfeiture payment payable to “DHS 639” and send it to:

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\* According to Art. X, §2 of the Wisconsin Constitution and Wis. Stat. § 50.03(5g)(c)1.c., all forfeitures collected by the Department are deposited in the State's School Fund.

ENFORCEMENT SPECIALIST  
DHS / DQA / BAL  
PO BOX 2969  
MADISON, WI 53701-2969

### POSTING OF NOTICES

According to Wis. Admin. Code DHS §§ 83.13(3)(a) and 83.14(2)(h), each facility shall immediately upon receipt post next to its CBRF license, and in a public area that is visually and physically available, any citation/statement of deficiency, notice of revocation, notice of non-renewal, and any other notice of enforcement action. Citations and statements of deficiency shall remain posted for ninety (90) days following receipt. Notices of revocation, non-renewal, and other notices of enforcement action shall remain posted until a final determination is made.

Therefore, the license shall immediately post this Notice and Order letter and it shall remain posted until a final determination is made.

\* \* \*

If you have questions about this letter, please contact Vicky Wittman, Assisted Living Regional Director, at (920) 448-4800.

Sincerely,

A handwritten signature in black ink, appearing to read "Kenneth Brotheridge", with a long horizontal line extending from the end of the signature.

Kenneth Brotheridge, Assisted Living Director  
Bureau of Assisted Living  
Division of Quality Assurance

Enclosure  
KB/clr

cc: Ombudsman, Portage County  
Aging/Disability Resource Center, Portage County  
Portage County Human Services  
Waiver Agencies  
Division of Medicaid Services

